Historical Background of the Constitution

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Introduction

✓ The British East India Company was established in **1600** under a charter granted by **Queen Elizabeth I**. It was a trading entity with exclusive rights to trade in the East.

✓ In **1765**, the Company acquired **Diwani Rights** (the rights to collect revenue and administer civil justice) for **Bengal, Bihar, and Orissa** through the **Treaty of Allahabad** after the **Battle of Buxar**.

✓ After the **Revolt of 1857** (often called the **Sepoy Mutiny**), the **British Crown** assumed direct control over India through the **Government of India Act 1858**, ending the rule of the East India Company.

✓ The idea of a **Constituent Assembly** to frame India's Constitution was suggested by **M.N. Roy** in **1934**, but it was formally formed in **1946** under the **Cabinet Mission Plan**.

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Regulating Act of 1773

- Governor of Bengal as the 'Governor-General of Bengal' (first-Warren Hastings)
- Established Supreme Court at Calcutta (1774)
- The **Bombay** and **Madras** presidencies were under the authority of the **governor-general of Bengal**
- Prohibited the **servants of the Company** from engaging in any private trade or accepting presents or bribes from the '**natives**'.
- Control of the British Government over the company was strengthened

Pitt's India Act of 1784 and Charter Act of 1813:

Pitt's India Act of 1784

- Company's Indian territories were for the first time called the '**British possessions in India**'
- Distinguished commercial and political functions of the Company.

Pitt's India Act of 1784

- A system of double government

1.**Court of Directors** managed the commercial affairs

2.A new body called the **Board of Control** managed political affairs

Charter Act of 1813

- **Ended the company's trade monopoly in India,** except for tea trade and trade with China.
- Permitted Christian missionaries to promote Western education.

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Charter Act of 1833

- Final step towards **centralization**
- Governor-General of Bengal as the "**Governor-General of India**" (First-Lord William Bentick)
- **Laws were referred to as Regulations, whereas under this act, they were referred to as Acts.**
- **Ended commercial activities of EIC (purely Admin Body)**
- **System of open competition for civil services (only on paper)**

Charter Act of 1853

- Last Charter Acts in series
- **The Act separated the legislative and executive functions of the Governor-General's council.**
  - It established a **separate Governor-General's legislative council** which came to be known as the Indian (Central) Legislative Council (total 6 members' along with local representation).
    - **First-time local representation in the Indian legislative**
- **The law member made as a full fledged member of council**
- **Introduction of Open Competition for Civil Services**
  - **Macaulay Committee on civil services appointed in 1854.**

Indian Council Act 1858

GOI Act of 1858

- "Also known as **Good Government Act**"
- Governor-General of India to **Viceroy of India** (First-Lord Canning)
- System of double government ended.
- New Office of **Secretary of State** for India (member of the British Cabinet)

Indian Council Acts

Indian Councils Act of 1861

- Beginning of the **representative institutions** by associating Indians with the law-making process.
- Restored legislative powers to Bombay and Madras.
- Recognised **portfolio system.**
- Empowered Viceroy to issue ordinances.

Indian Councils Act of 1892

- Increased the number of additional (non-official) members in the **Central and provincial legislative councils,** with official majority.
- It increased the functions of legislative councils and gave them the power of discussing the budget and addressing questions to the executive.
- Introduced indirect elections (nomination).

Indian Councils Act of 1909

This Act is also known as the Morley-Minto Reforms.

- **Direct elections to legislative councils;** first attempt at introducing a representative and popular element.
- The member of the Central Legislative Council was increased to 60 from 16.
- Introduced a system of communal representation for Muslims by accepting the concept of a 'separate electorate'.
- **Indians for the first time in the Viceroy's executive council.** (Satyendra Prasanna Sinha, as the law member)

Government of India Act of 1919

- **This Act is also known as the Montague-Chelmsford Reforms.**
- **The Central subjects were demarcated and separated from those of the Provincial subjects.**
- **The scheme of dual governance, 'Dyarchy', was introduced in the Provincial subjects.**
- **Under the dyarchy system, the provincial subjects were divided into two parts – transferred and reserved. On reserved subjects, the Governor was not responsible to the Legislative council.**
- **The Act introduced, for the first time, bicameralism at the center and Direct Election.**
- **Legislative Assembly with 140 members and Legislative Council with 60 members.**
- **The Act also required that three of the six members of the Viceroy's Executive Council (other than Commander-in-Chief) were to be Indians.**
- **Provided for the establishment of the Public Service Commission.**

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Government of India Act of 1935

- It proposed the formation of an All-India Federation consisting of both **Provinces** and **Princely States**.

- The Act divided powers between the **Centre** and the **Provinces** into three distinct lists:
  - **Federal List** (59 items) - Centre's jurisdiction.
  - **Provincial List** (54 items) - Provinces' jurisdiction.
  - **Concurrent List** (36 items) - Both the Centre and Provinces had authority.

- The Act abolished the **Dyarchy** (dual government) in the provinces and introduced Dyarchy in the Centre. **Provincial Autonomy** was introduced.

- The Act introduced **bicameral legislatures** in **6 out of 11 Provinces**.
- A **Federal Court** was established to resolve disputes between the Centre and the Provinces.

Indian Independence Act of 1947

- It declared India as an Independent and Sovereign State.
- Established responsible Governments at both the Centre and the Provinces.
- Designated the Viceroy India and the provincial Governors as the Constitutional (normal heads).
- It assigned dual functions (Constituent and Legislative) to the Constituent Assembly and declared this dominion legislature as a sovereign body.